

AUTHORITY TO TAKE DISCIPLINARY AND OTHER ACTION AGAINST STUDENTS

Loudoun County Public Schools (LCPS) is committed to providing each student with a high-quality education in an environment that is safe and conducive to teaching and learning. Each student has the responsibility to ensure that their behavior does not deny that right to others. Accordingly, the School Board adopts policies designed to promote such learning environments by encouraging students to become responsible citizens, while discouraging student conduct that adversely impacts the health, safety, and welfare of the students and staff. The School Board expects LCPS administrators to apply student disciplinary policies equitably and to consider a range of relevant factors—including a student's age, developmental level, disability status, and other relevant circumstances—when determining an appropriate response. Whenever practicable, that response should prioritize learning, accountability, and restoration over exclusion from school.

In accordance with Virginia Code § 22.1-279.6, the School Board further authorizes the Superintendent and LCPS administrators to develop and implement regulations and the "Student Rights and Responsibilities Handbook for Families and Student Code of Conduct" (SR&R) that are consistent with Virginia's Standards of Quality, which require student conduct and enforcement procedures designed to ensure that education is provided in an atmosphere that is "free of disruption and threat to persons or property" and "supportive of individual rights."

The School Board, acting through the Superintendent, holds all LCPS employees responsible for supervising student behavior while students are legally under the supervision of the School Division. The School Board holds all students responsible for conducting themselves in a manner consistent with LCPS policies and regulations, as well as the SR&R and its annual supplements.

A. Authority to Take Disciplinary Action Against a Student. A student is subject to disciplinary action when the student engages in misconduct that:

1. Occurs on property owned, leased, or used by the School Board, including but not limited to buildings and structures; grounds; buses and other vehicles; and technology devices and networks, including virtual classroom settings;
2. Occurs while the student is participating in or attending any LCPS-sponsored activity or event as defined by Policy 8020, *Relations with School Support Organizations*, regardless of the location of the activity;
3. Impacts any LCPS student or staff member who is traveling to or from school or any LCPS-sponsored activity, if the misconduct is determined to have endangered or otherwise compromised the well-being of that LCPS student or staff member; or
4. Occurs off LCPS property and outside of school hours, if the student's

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misconduct is detrimental to LCPS's ability to provide secure learning environments, adversely affects the student discipline process or directly, materially, and substantially disrupts normal school operations.

B. Authority to Take Action Against a Student Charged with, or Convicted of, a Community-Based Crime. In accordance with Virginia Code § 22.1-277.2:1 and School Board Policy 8220, Student Disciplinary Consequences:

1. A student may be required to attend an alternative education program if the student has been: (i) charged with an offense relating to the Commonwealth's laws on weapons, alcohol or drugs, or intentional injury to another person, or with an offense that is required to be disclosed to the Superintendent pursuant to subsection G of Virginia Code § 16.1-260; or (ii) found guilty or not innocent of an offense relating to the Commonwealth's laws on weapons, alcohol, or drugs, or of a crime that resulted in or could have resulted in injury to others, or of an offense that is required to be disclosed to the Superintendent pursuant to subsection G of § 16.1-260.

- a. Such student may be required to attend an alternative education setting regardless of where the alleged crime occurred.
- b. As used in this section, the term "charged" means that a petition or warrant has been filed or is pending against a student.

2. A student who has been adjudicated delinquent of, or convicted for, an offense listed in subsection G of Virginia Code § 16.1-260 may be suspended or expelled.

C. Authority to Exclude or Reassign a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program.

In accordance with Virginia Code §§ 22.1-277.06, 22.1-277.2, and 22.1-277.2:1; and with Policy 8225, Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program, a student may be excluded from LCPS or reassigned to an alternative education setting in LCPS if the student has been expelled, suspended from school for more than 30 days, or reassigned to an alternative education setting by a school board or a private school in Virginia or in another state; or if the student's admission has been withdrawn by a private school in Virginia or in another state.

D. Notification of Policies and Rules.

Students and parents have a right to know the policies, regulations, and rules concerning student conduct and discipline. LCPS policies and regulations are publicly available on the Policy and Regulations page of the LCPS website. The SR&R is also

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available on the LCPS website. Printed copies of the School Board Policies and the SR&R, which is updated annually, will be made available upon request at the beginning of each school year and whenever a new student enrolls in LCPS.

[Former Policy 8-1]

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Legal Ref.: Constitution of Virginia, Article VIII, § 7; Va. Code Ann. §§ [16.1-260](#), Subsection [G](#); [22.1-78](#); [22.1-253.13:7](#); [22.1-277.06](#); [22.1-277.2](#); [22.1-277.2:1](#); [22.1-279.6](#)

Cross Ref.: [Policy 8020](#), Relations with School Support Organizations; [Policy 8220](#), Student Disciplinary Consequences; [Policy 8225](#), Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program; “Student Rights and Responsibilities Handbook for Families and Student Code of Conduct”